



**EZ Business Advisors LLC of Harrisburg Confidentiality, Disclosure, and
Commission Protection Agreement**

This Agreement, dated and effective as of the latest date set forth below August day of 27th 2025, is by and between EZ Business Advisors LLC of Harrisburg, with a principal place of business in Dauphin County, Pennsylvania ("**Broker**"), and the following party:

Prospect Name :

Address	City	State	ZIP CODE
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Email Address	Driver's License / Federal EIN #
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Phone	Cell	Fax
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BUSINESS CATEGORY:

In consideration of Broker disclosing confidential information concerning the business described in the Listing (the "**Business**"), owned by the seller ("**Seller**"), Prospect agrees as follows:

1. CONFIDENTIALITY. Prospect acknowledges that Seller and Broker will disclose non-public, confidential, and proprietary information related to the Business ("**Confidential Information**"). Prospect shall not disclose, publish, or reveal any

Confidential Information to any third party without the prior written consent of Seller and Broker, except to Prospect's attorneys, accountants, or lenders who are directly advising on this potential transaction and who agree to be bound by these confidentiality terms. All documents provided shall be returned immediately upon Broker's or Seller's written request.

2. BROKER AS EXCLUSIVE AGENT; COMMISSION PROTECTION.

a. Prospect agrees that Broker is the exclusive procuring cause of this introduction and that all communications concerning the Business must be conducted solely through Broker. Prospect shall not, for a period of **twenty-four (24) months** from the Effective Date, directly or indirectly:

- i. Contact, approach, or deal with the Seller, its principals, employees, landlords, suppliers, or customers regarding the Business without Broker's express written permission.
- ii. Visit the physical business location without an appointment arranged by Broker's. Prospect shall be obligated to pay Broker its full commission, as defined in the Broker's listing agreement with the Seller, if **any** of the following occurs:
 - i. Prospect, **or any entity in which Prospect has a direct or indirect interest**, enters into a contract to purchase, lease, manage, or acquire any interest in the Business or its assets.
 - ii. Prospect, **or any person or entity introduced by Prospect** to the Business or Seller (e.g., family member, business associate, affiliate, partner, or investor), enters into such a contract or arrangement.
 - iii. A transaction is consummated on terms substantially similar to those presented by Broker.

c. Prospect acknowledges that these provisions are necessary to protect Broker's legitimate business interests and compensation.

3. LIQUIDATED DAMAGES. In the event Prospect breaches Section 2 of this Agreement, the parties agree that accurately determining Broker's damages would be difficult. Therefore, the parties hereby agree that **liquidated damages** in an amount equal to the **full commission** Broker would have earned pursuant to its agreement with the Seller is a reasonable estimate of Broker's damages and is not a penalty. Prospect agrees to pay this amount immediately upon demand. This remedy is non-exclusive and is in addition to any other legal or equitable remedies available to Broker.

4. LIEN AND POWER OF ATTORNEY. To secure the payment of the commission and any other amounts due hereunder, Prospect hereby grants Broker an express **security interest and lien** on any and all assets of the Business acquired by Prospect or its affiliates in violation of this Agreement. Prospect irrevocably appoints Broker as its **attorney-in-fact**, with full power of substitution, to execute and file any financing

statements (UCC-1) or other documents necessary to perfect this security interest and lien under the laws of Pennsylvania. This appointment is coupled with an interest and is irrevocable.

5. NO REPRESENTATIONS OR WARRANTIES; INDEPENDENT

VERIFICATION. Broker makes no representations or warranties, express or implied, regarding the accuracy or completeness of any information provided. All information is provided by the Seller. Prospect agrees to independently verify all information and to seek independent legal, tax, and accounting advice. Prospect agrees to indemnify, defend, and hold Broker harmless from any claims, damages, or liabilities arising from Prospect's use of the Confidential Information or reliance on any unverified data.

6. THIRD-PARTY BENEFICIARY. Prospect acknowledges that Seller is an **intended third-party beneficiary** of this Agreement, specifically with rights to enforce the confidentiality and non-circumvention provisions herein.

7. GOVERNING LAW; EXCLUSIVE VENUE; CONSENT TO JURISDICTION. This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Pennsylvania, without regard to its conflict of laws principles. Any legal action or proceeding arising under this Agreement shall be brought **exclusively** in the **Courts of Dauphin County, Pennsylvania**, or the Federal Court for the Middle District of Pennsylvania. Prospect hereby irrevocably submits to the personal jurisdiction of these courts and waives any objection to venue.

8. INJUNCTIVE RELIEF. Prospect acknowledges that a breach of this Agreement will cause Broker and Seller irreparable harm for which monetary damages alone would be inadequate. Consequently, Broker and/or Seller shall be entitled to seek **injunctive relief**, including temporary restraining orders and preliminary and permanent injunctions, to prevent any such breach, without the necessity of proving actual damages or posting a bond.

9. ATTORNEYS' FEES. In any action to enforce this Agreement, the **prevailing party** shall be entitled to recover its reasonable attorneys' fees, court costs, and expenses incurred at all trial and appellate levels.

PROSPECT'S REPRESENTATIONS AND WARRANTIES:

Prospect represents, warrants, and covenants that:

- a. The sole purpose of receiving information is to evaluate a potential acquisition of the Business.
- b. Prospect has the financial capacity to consummate such a transaction.
- c. Prospect is not acting as an agent for a competitor and has not been convicted of a felony involving fraud.

d. Prospect has read, understands, and voluntarily agrees to all terms of this legally binding Agreement.

PROSPECT SIGNATURE: _____

PRINTED NAME: _____

DATE:

BROKER ACCEPTANCE:

By: EZ Business Advisors (Authorized Signatory for EZ Business Advisors LLC of Harrisburg)

Printed Name: Rabin Timsina

Title: Business Broker (Agent)

Date:

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EZ Business Advisors LLC of Harrisburg is an independently owned and operated company.